DIFC Courts Order No. 5 of 2019 In respect of The DIFC Courts Small Claims Leasing Tribunal

NOVEMBER 18, 2019 COURT ADMINISTRATIVE ORDERS

I, Zaki Bin Azmi, Chief Justice (/glossary/chief-justice/) of the Dubai International Financial Centre Courts (/glossary/court/),

Having reviewed—

Dubai Law No. 9 of 2004 in respect of the establishment of the DIFC (/glossary/difc/), as amended;
Dubai Law No. 12 Of 2004 in respect of the Judicial Authority at the DIFC, as amended;
DIFC Law No. 10 of 2004 in respect of the DIFC Courts (/glossary/difc-courts/) ("DIFC Court Law (/glossary/court-law/)");

DIFC Courts Order No. 2 of 2007 establishing the Small Claims Tribunal (/glossary/tribunal/) ("SCT");

DIFC Courts Order No. 1 of 2010 – Limits of Jurisdiction (/glossary/jurisdiction/);

DIFC Courts Order No. 1 of 2014 – Members of the SCT;

DIFC Courts Order No. 2 of 2014 – Resolution of Rental Disputes;

DIFC Courts Order No. 1 of 2015 – Jurisdiction of the DIFC Courts;

Practice Direction No. 2 of 2010 – SCT Judge (/glossary/judge/); and

Part 53 of the Rules (/glossary/rules/) of the DIFC Courts

And Whereas –

(A) Pursuant to Article 14(3) of the DIFC Court Law, the Chief Justice of the DIFC Courts is authorised, where he considers it appropriate, to set up and administer Tribunals of the DIFC Courts, and to authorise rules (/glossary/rules/) for their administration, to be set out in the Rules of the DIFC Court (/glossary/court/) (the "RDC").

(B) The SCT was established pursuant to DIFC Courts Order No. 2 of 2007 issued by the Chief Justice at the time.

(C) The RDC, which contains provisions in respect of the rules governing the SCT, has been enacted by His Highness The Ruler (/glossary/ruler/) of Dubai pursuant to Article 31(1) of the DIFC Court Law.

(D) The SCT is recognised as crucial mechanism for a prompt and cost-efficient method for the administration of justice and determination of small claims within the jurisdiction (/glossary/jurisdiction/) of the DIFC Courts.

And I Now hereby order and direct as follows –

(1) The DIFC Courts Small Claims Leasing Tribunal ("SCLT") is hereby set up with power to hear and determine claims related to residential and commercial leasing/rental located within the Dubai International Financial Centre where the amount of the claim does not exceed AED 1,000,000 (one million UAE (/glossary/uae/) Dirhams) or any such other amount as may be ordered or directed by the Chief Justice from time to time.

(2) The Members of the SCLT shall be known as SCT Judges (/glossary/judge/) when they act in that capacity.

(3) The Register of proceedings in the SCLT shall be maintained under the general direction of the SCT Registrar (/glossary/registrar/) or by the Registrar.

(4) Part 53 of the RDC shall, read with such modifications as maybe necessary, regulate the conduct of proceedings in the SCLT and the enforcement of orders and judgments of the SCLT.

(5) This Order shall take affect from 14 November 2019.

(6) This order shall not affect the validity of Order No. 2 of 2007.

(7) This Order shall be known as The DIFC Small Claims Tribunal (Leasing Tribunal) Order, being Order No. 5 of 2019.

Chief Justice Zaki Bin Azmi

Dated: 14 November 2019